

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sophia Bernhardt	Team: Team # 8	CCRB Case #: 200302348	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/21/2003 1:20 AM	Location of Incident: § 87(2)(b)	Precinct: 68	18 Mo. SOL 9/21/2004	EO SOL 9/21/2004	
Date/Time CV Reported Tue, 03/25/2003 6:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/31/2003 8:14 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. CPT Anthony Favale	00000	888696	PBBS
2. SGT John Chell	00659	905942	NAR DIV
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Salvator Taormina	10513	924538	PBBS
2. POM John Dixon	03752	897368	PBBS
3. POM William Regina	25992	890814	PBBS
4. POM Robert Hardenfelder	21174	897632	PBBS

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Abuse: An officer threatened to damage § 87(2)(b)'s property.	§ 87(2)(b)
B. An officer	Abuse: An officer threatened to arrest § 87(2)(b)	§ 87(2)(b)
C. SGT John Chell	Abuse: Sergeant John Chell entered and searched § 87(2)(b)	§ 87(2)(b)
D. An officer	Abuse: An officer threatened to notify Administration for Children's Services.	§ 87(2)(b)
E. CPT Anthony Favale	Abuse: Captain Anthony Favale entered and searched § 87(2)(b)	§ 87(2)(b)

Synopsis

On April 21st, 2003, two white male plainclothes officers went to § 87(2)(b), at approximately 1:20 AM. The officers spoke with § 87(2)(b) a resident of the apartment who answered the door. The officers were looking for § 87(2)(b) common-law husband, § 87(2)(b) and asked if he was home. § 87(2)(b) informed the officers that § 87(2)(b) was out and would probably come home at approximately 5:00 AM. She allowed the officers to look around the apartment, and they left soon afterwards, stating that they would return later. At approximately 7:00 AM, two white male plainclothes officers returned. The officers entered the apartment, where they saw § 87(2)(b). The officers asked § 87(2)(b) to step outside, and he voluntarily left the apartment. § 87(2)(b) was subsequently arrested in the public hallway of the building. Four days later, § 87(2)(b) made a complaint to the Internal Affairs Bureau. She alleged that when the officers first came at 1:00 AM, an officer threatened to break the door down if she did not open it. An officer also threatened to arrest § 87(2)(b) if she warned § 87(2)(b) that the police were looking for him. § 87(2)(b) further alleged that when the officers returned at 7:00 AM, an officer threatened to “call BCW” if § 87(2)(b) did not open the door. § 87(2)(b) stated that during their second visit, the officers entered her apartment without consent. § 87(2)(b) claimed that the same two officers came to her apartment both at 1:20 and at 7:00. She stated further that one officer made all of the threats and that his name was “Favale.”

Captain Anthony Favale, the commanding officer for the Brooklyn South Auto Larceny Unit, acknowledged that he was at § 87(2)(b) apartment on the date of occurrence. However, he stated that he was only present for the second visit at 7:00 AM and denied having been at the apartment earlier. Two other white male officers from the Brooklyn South Auto Larceny, Sergeant John Chell and Officer John Dixon, claimed that they were the officers who made the 1:20 AM visit and corroborated Captain Favale’s account. § 87(2)(b) was shown photo arrays but was unable to identify Captain Favale, Sergeant Chell or Officer Dixon. Furthermore, her description of “Favale” matched neither Captain Favale nor any of the other potential subjects. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on 4/21/03 (Encl. 7a-c).

§ 87(2)(b) stated that on the evening of 3/20/03 and early morning of 3/21/03, she was home with her daughter while her common-law husband, § 87(2)(b) was visiting his mother in Canarsie. At approximately 3:00 AM on 3/21/03, § 87(2)(b) heard someone banging on the door. She initially thought that it was § 87(2)(b) and that he must have forgotten his keys. However, when she went to look through the peephole, she did not see anyone. She then heard a man say that he was a police officer, and that he would break down the door if § 87(2)(b) did not open it. § 87(2)(b) was scared, and opened the door as commanded. § 87(2)(b) saw two white male officers in plainclothes. One officer had a shield around his neck and she saw the name “Favale.” “Favale” asked if § 87(2)(b) was home. § 87(2)(b) stated that he was not there but that he would definitely be home by the morning. “Favale” stated that § 87(2)(b) had been involved in a hit-and-run accident in East New York. He added that an elderly woman had been hit and that since both a man and a woman had been involved in the hit-and-run, § 87(2)(b) could be implicated herself. “Favale” stated that § 87(2)(b) should not call § 87(2)(b) and warn him that the police were looking for him. He said, “If you are lying to me, you’ll be in trouble. You’re the one who will get arrested.” The officers asked to come inside and § 87(2)(b) gave her consent. The officers took a look around but did not search in any enclosed spaces. “Favale” wrote down his name and phone number and instructed § 87(2)(b) to call him if § 87(2)(b)

§ 87(2)(b) got home, repeating that he would arrest her if she didn't cooperate. Soon afterwards, the officers left the scene.

§ 87(2)(b) did not tell § 87(2)(b) about the police, and he returned home at approximately 6:00 AM. An hour later, the same two police officers returned. § 87(2)(b) was sleeping, and § 87(2)(b) went to the door. She heard the voice of "Favale" saying, "If you don't open the door, I'm going to call BCW." § 87(2)(b) opened the door and the two officers stepped past her into the apartment. They did not ask for her consent to enter, and she did not volunteer it. They woke up § 87(2)(b) and asked him to step outside. § 87(2)(b) daughter woke up and became very upset, crying and trying to hold on to her father. The officers asked § 87(2)(b) to wait inside with her daughter, and she did so while § 87(2)(b) spoke with the officers in the public hallway. Approximately ten minutes later, it was time for § 87(2)(b) to take her daughter downstairs, where her maternal grandmother would pick her up and take her to school. § 87(2)(b) dropped off her daughter and then headed back upstairs. When she reached her apartment, she saw the officers handcuffing § 87(2)(b). In the meantime, two or three more plainclothes officers had arrived at the scene, and § 87(2)(b) was arrested and removed.

When asked about the identities of the officers, § 87(2)(b) stated that although she could not see "Favale" when he threatened to break down the door and report her to BCW, she was sure he was the officer who made these statements because she recognized his voice, which was very low and distinctive. She added that he did most of the talking at the scene. On September 24, 2003, § 87(2)(b) was shown eight single photos, presented simultaneously to form an array. (Encl. 8a-j) The photos depicted five officers from the Patrol Borough Brooklyn Auto Crime unit: Captain Anthony Favale, Sergeant John Chell, Officer Robert Hardenfelder, Officer Salvator Taormina and Officer William Regina. Three fillers were also included. § 87(2)(b) did not recognize any of the officers and insisted that a photo of Captain Favale was not in the array. When asked again to describe the captain, she stated that he was a heavysset white male in his forties with light eyes, brown hair, a wide face and a double chin. She stated that he was approximately 5'6" or 5'7" and had a "big belly." § 87(2)(b) stated upon further questioning that she was positive it was the same two officers who came to her apartment both times, and that the officer who wrote down his name was definitely the officer who threatened her. As further evidence, § 87(2)(b) presented this investigator with the original piece of paper on which Captain Favale wrote his name, cell phone number and beeper number. Later that day, she faxed a copy of the notes to the CCRB. (Encl. 9)

Results of Investigation

§ 87(2)(b)
On April 24, 2003, § 87(2)(b) spoke to this investigator over the phone. (Encl. 10) He stated that on the date of occurrence, he was at his mother's house and returned home at approximately 4:00 AM. § 87(2)(b) went to sleep and woke up a few hours later to find police officers inside his apartment. His daughter was upset by the presence of the officers, so he walked out to the public hallway to speak to the officers there. Once outside, the officers arrested him and charged him with § 87(2)(b)
§ 87(2)(b)

Sergeant John Chell

On July 16, 2003, Sergeant John Chell was interviewed at the CCRB (Encl. 12a-b). Sergeant Chell is a 6'1" tall, 230 pound white male with red hair and green eyes (See photo, Encl. 8f). After this incident, Sergeant Chell was transferred to the Narcotics Borough Brooklyn South. In the course of changing commands, the possessions inside Sergeant Chell's locker at the Auto Crime Unit were misplaced, including his memo book. Consequently, Sergeant Chell's memo book entries were never provided (Encl. 11a-b).

Sergeant Chell stated that on 3/20/03, he was involved in a car chase of a stolen vehicle. Two of the perpetrators, § 87(2)(b) and § 87(2)(b), were arrested while a third perpetrator, § 87(2)(b) escaped. On 3/21/03, Sergeant Chell was assigned to work an overnight tour with Officer John Dixon. Upon arriving at work, Sergeant Chell learned that an address for § 87(2)(b) had been obtained. At approximately 1:00 AM, he and Officer Dixon proceeded to the address. They did not have an arrest warrant. When Sergeant Chell and Officer Dixon reached the apartment a woman, later identified as

§ 87(2)(b) answered the door. Sergeant Chell was wearing his shield around his neck, and asked if he could speak with her. § 87(2)(b) agreed, and allowed the officers into the apartment. Sergeant Chell showed her a picture of § 87(2)(b) and § 87(2)(b) asked, "What has he done now?" Sergeant Chell stated that he was looking for § 87(2)(b) in connection with a car accident and the police wanted to talk to him. § 87(2)(b) stated that § 87(2)(b) was not home, and he usually returned home at around 5:00 AM. She seemed not to care if § 87(2)(b) was arrested, and informed the officers that he was on parole. Sergeant Chell informed § 87(2)(b) that he would be back at around 5:00, and he then left the scene.

At approximately 5:00 AM, two other Auto Larceny officers, Officer Regina and Officer Hardenfelder, went to the building to wait for § 87(2)(b) to get home. Sergeant Chell and Captain Anthony Favale joined Officer Hardenfelder and Officer Regina several hours later, and learned that § 87(2)(b) had still not returned. By this time, Officer Dixon had ended his tour and gone home. At approximately 8:00 AM, Sergeant Chell was tired of waiting and decided to go back upstairs and see if § 87(2)(b) was there. When he knocked on the door, § 87(2)(b) answered it. Sergeant Chell asked if § 87(2)(b) was home and § 87(2)(b) silently gestured with her finger towards the other room of the apartment. She let the officers into the apartment where they saw § 87(2)(b). They asked if they could speak to him outside, and § 87(2)(b) agreed and exited the apartment. He was then arrested in the hallway and transported to the command by Officer Hardenfelder and Officer Regina.

When asked directly about the allegations, Sergeant Chell denied that anyone threatened to break down § 87(2)(b) door, threatened to arrest her, or threatened to notify ACS. He stated that he did not see any conditions in the apartment that would have warranted an ACS referral. He denied any suspicion that § 87(2)(b) was involved in the auto theft, and stated that she looked nothing like § 87(2)(b) the woman who was arrested in connection with the case.

Captain Anthony Favale

Captain Favale, a § 87(2)(b) old white male with brown hair and light eyes, is 5'7" and 168 pounds. He does not have a particularly wide face or a double chin, and appears to be in very good shape (See photo, Encl. 8i). Captain Favale is the commanding officer for the Patrol Borough Brooklyn South Auto Larceny Unit. On June 19, 2003. He was interviewed at the CCRB (Encl. 13a-c).

Captain Favale stated that on the evening of 3/19/03, an attempted break-in was reported in the confines of the 61st Precinct. The perpetrators as three Hispanic males and a Hispanic female driving in two separate vehicles, a minivan and a sedan. Detailed descriptions of the minivan, the sedan and the perpetrators were subsequently announced over the radio. Just after midnight on 3/20/03, Captain Favale was in the confines of the 68th Precinct in an unmarked car with Sergeant John Chell and Officer John Dixon when he saw a sedan and a minivan that matched the radio description. He and his partners began to follow the vehicles and check their license plates in their mobile digital computer. Before the checks were complete, the minivan and the sedan went separate ways and the officers decided to follow the sedan. The sedan soon sped up and turned the wrong way on a hilly one-way street, sideswiping another vehicle in the process. Meanwhile, the mobile digital computer revealed that the sedan and the minivan were both stolen. Captain Favale called off the car chase for safety reasons and put out a description of the sedan over the radio. A few minutes later, another police unit announced that they had found the sedan a few blocks away. The male driver of the vehicle had run away on foot and escaped, but the female passenger was apprehended and arrested. The female passenger, later identified as § 87(2)(b) was questioned by Captain Favale and Sergeant Chell and she eventually identified the driver of the sedan as § 87(2)(b). The officers found an old arrest photo for § 87(2)(b) and conducted a photo array with the original 911 caller who reported the attempted break-in. The 911 caller positively identified § 87(2)(b).

At approximately 6:00 AM on 3/21/03, Captain Favale sent Officer Hardenfelder and Officer Regina, two plainclothes officers under his command, to go to § 87(2)(b) address. Officer Hardenfelder and Officer Regina were given a photo of § 87(2)(b) and were instructed to wait outside his building and see if he came home or left the house. As far as Captain Favale knew, Officer Hardenfelder and Officer Regina never entered the building and he never ordered them to do so. At approximately 6:45, Captain Favale arrived at § 87(2)(b) building and relieved the other officers. Captain Favale and Sergeant

Chell went upstairs and knocked on § 87(2)(b) door. § 87(2)(b) answered and the officers asked her if § 87(2)(b) lived there. § 87(2)(b) stated that § 87(2)(b) was her boyfriend and the father of her child, and that he lived with her. The officers asked if they could come inside, and § 87(2)(b) let them in. At that point, Captain § 87(2)(b) saw a man getting dressed in the next room and recognized him as the driver of the sedan. Captain Favale asked § 87(2)(b) to step outside the apartment and § 87(2)(b) agreed.

When they reached the public hallway, the officers arrested § 87(2)(b) without incident. § 87(2)(b) then exited the apartment and stated that she wanted to take her daughter downstairs to the school bus. She wanted to know whether she could leave and whether she should lock the door. The officers told § 87(2)(b) to go ahead, and stated that they would wait for her to get back. § 87(2)(b) left with her daughter and returned a few moments later. She was very upset, and so Captain Favale went back into the apartment to speak with her. He explained that § 87(2)(b) had fled from the police and struck another vehicle, and that he was being arrested. § 87(2)(b) stated that she did not want § 87(2)(b) to come back and did not want him living there anymore. Captain Favale gave § 87(2)(b) his name, title and phone number. He told § 87(2)(b) to call him if she had any questions and he then left the scene.

When asked specifically about the allegations, Captain Favale stated that he was only at the apartment once and had no knowledge of an earlier visit. He denied threatening to arrest § 87(2)(b) threatening to notify ACS or entering the apartment without permission. He stressed that § 87(2)(b) was extremely polite and cordial to him at the time of the incident, and it was her courtesy that led him to tell her his phone number and take extra time to explain the situation. Captain Favale stated that he did not see any evidence of drug use in the apartment or anything else that would have warranted an ACS referral.

Officer John Dixon

Officer Dixon is a § 87(2)(b) year old white male with brown hair and green eyes. At the time of his CCRB interview, he was very thin at 6'0" and just 170 pounds. Officer Dixon wrote in his memo book that on the evening of 3/20/03 – 3/21/03, he was assigned as the vehicle operator for Sergeant Chell and Captain Favale. At 2:00 AM, Officer Dixon went "to § 87(2)(b), confines of 68, for § 87(2)(b). At 2:20 AM, he marked the job "neg." At 3:00 AM, he returned to his command for administrative duty. At 6:35 AM, he went off duty (Encl. 14a-b). On July 16, 2003, Officer Dixon was interviewed at the CCRB (Encl. 15a-b).

Officer Dixon's account of the report of a stolen vehicle, the car-chase and the eventual apprehension of § 87(2)(b) was consistent with the other officer accounts. He stated that on the early morning of 3/21/03, he was working solely with Sergeant Chell. At approximately 1:00 AM, he went with Sergeant Chell to the 101st Street address provided by § 87(2)(b) to look for § 87(2)(b). When the officers arrived, Sergeant Chell knocked on the front door and a woman, later identified as § 87(2)(b) responded immediately. Sergeant Chell introduced himself and asked if the officers could enter the apartment. § 87(2)(b) said, "Please come in," and the officers walked inside. § 87(2)(b)'s apartment was a small studio the whole apartment was visible from near the door. There was a child was sleeping on the couch in the living room, but Officer Dixon did not see any dangerous conditions that would warrant reporting § 87(2)(b) to ACS. Sergeant Chell showed § 87(2)(b) a picture of § 87(2)(b) and she identified him as her boyfriend. Sergeant Chell asked if § 87(2)(b) was home and § 87(2)(b) replied that he wasn't. When asked when he might return, § 87(2)(b) said, "With him you can never tell. Sometimes four, sometimes five. What did he do now?" Sergeant Chell told § 87(2)(b) that § 87(2)(b) was observed driving a stolen vehicle. § 87(2)(b) asked what was going to happen, and Sergeant Chell informed her that when the officers saw § 87(2)(b) they would arrest him. He also told § 87(2)(b) that there would be officers stationed outside the apartment. § 87(2)(b) said, "What else is new? Have a nice day." The officers then left the apartment. Officer Dixon denied that the officers threatened to call ACS or threatened to arrest § 87(2)(b). He also denied that the officers discussed a hit and run accident at all. Officer Dixon went off duty shortly after this incident and never returned to the apartment or had any further contact with § 87(2)(b).

Officer Hardenfelder

Officer Hardenfelder is a white male, 6'0" and 190 pounds with light brown hair and blue eyes (See photo, Encl. 8h). Officer Hardenfelder noted in his memo book that on 3/21/03, he went for gas mask training until 3:00 AM. At 4:30, he responded to § 87(2)(b). At 8:00 AM, one person was placed under arrest and taken to the 61st Precinct for processing. At 8:30 he finished his tour of duty (Encl. 16a-c). On July 16, 2003, Officer Hardenfelder was interviewed at the CCRB (Encl. 17a-b).

Officer Hardenfelder stated that on the date of occurrence he worked an extended overtime tour from 3:00 PM until 8:00 AM the next day. From 15:00 on 3/20/03 until 3:00 AM on 3/21/03, he went to gas mask training at the Police Academy in Manhattan. He then returned to the Brooklyn auto larceny headquarters and was partnered with Officer Regina. Captain Favale and Sergeant Chell informed him that they wanted to find a man suspected of auto theft, later identified as § 87(2)(b). Captain Favale and Sergeant Chell stated that they had an address and description for § 87(2)(b) and that he was expected to arrive home at around 5:00 AM. Officer Regina and Officer Hardenfelder proceeded to § 87(2)(b) to wait outside and see if § 87(2)(b) came home. They waited for some time, but did not see § 87(2)(b). They did not enter the building, and eventually Sergeant Chell and Captain Favale arrived and joined them. After a few hours, it was time for Officer Regina to end his tour, and so Officer Regina went off duty and Officer Taormina took his place. Eventually Sergeant Chell and Captain Favale decided to go upstairs and see if § 87(2)(b) was there. The captain and the sergeant went into the building and left the other officers downstairs. A few minutes later, the captain called Officer Hardenfelder on his cell phone and informed him that they had found § 87(2)(b) and were bringing him downstairs. Officer Hardenfelder never entered the building or met § 87(2)(b). When § 87(2)(b) was escorted outside, Officer Hardenfelder transported him back to the command and then went off duty.

Officer Salvatore Taormina

Officer Taormina is a § 87(2)(b)-old white male, 5'9" and 170 pounds with brown hair and brown eyes (See photo, Encl. 8c). Officer Taormina made no detailed memo book entries regarding this incident (Encl. 18a-c). On June 19, 2003, he was interviewed at the CCRB (Encl. 19a-b).

Officer Taormina stated that on March 21, 2003, he worked from 6:00 AM to 2:35 PM. When he started his tour, Captain Favale was at the station house and told him to go and pick up a perpetrator on § 87(2)(b). Captain Favale instructed Officer Taormina that the perpetrator in question had fled the scene of an accident and was wanted in connection with several auto thefts. However, by the time Officer Taormina arrived at § 87(2)(b), Captain Favale was already there and was escorting a man out of the building in handcuffs. The arrest was assigned to Officer Taormina for processing and he brought § 87(2)(b) to the station house. Officer Taormina never met § 87(2)(b) or entered her apartment.

Locating the officers

§ 87(2)(g) Due to his high rank, Captain Favale did not keep a memo book. Of the other officers, only Officer Dixon kept detailed memo book entries. Although there are **sprint records** related to the incident as a whole, they do not indicate the specific movements of Auto Crime officers because Auto Crime units generally use cell phones and point-to-point radio to communicate, and only use division radio to communicate with non-Auto Crime units. The sprint records do, however, establish the following time-line (Encl. 27a-e):

3/20/03 01:23 Descriptions provided over the radio that police are looking for a male Hispanic and a female Hispanic in a tan four-door vehicle. Police are also looking for a black Chevy Lumina van.

3/20/03 01:24 Arrest made by an Auto Crime unit at 67th Street and 14th Avenue.

3/20/03 01:25 Report over the radio that a male perpetrator has fled on foot although a female perpetrator is in custody.

3/21/03 08:15 Further arrest by Auto Larceny

The arrests of § 87(2)(b) and § 87(2)(b)

According to her **BADS Report**, § 87(2)(b) was arrested at 1:53 AM on April 20th at 1424 67th Street in Brooklyn (Encl. 26a-e). She was arrested by Officer Dixon for § 87(2)(b).

§ 87(2)(b), § 87(2)(a) 160.50, § 87(2)(c). The report notes that § 87(2)(b) was in the front passenger seat of a stolen car at the time of her arrest. The **vehicle voucher**, also prepared by Officer Dixon, notes that § 87(2)(b) was found in a tan 1986 Oldsmobile belonging to § 87(2)(b) (Encl. 24). The **BADS report** and **online booking sheet** for § 87(2)(b) indicate that he was arrested on March 21, 2003 at § 87(2)(b) in Brooklyn at approximately 8:15 AM (Encl. 21a-b & 25a-j). § 87(2)(b) was arrested for § 87(2)(b), § 87(2)(a) 160.50, § 87(2)(c). Although Officer Taormina is listed as the arresting officer, the reports make it clear that he was merely the officer who processed the arrest. The narrative states that Officer Taormina was advised by another officer that § 87(2)(b) was known to have had been driving a stolen 1986 Oldsmobile and that § 87(2)(b) and three accomplices had attempted to steal two additional vehicles. The **command log** indicates that Officer Taormina brought § 87(2)(b) to the Patrol Borough Brooklyn South headquarters at 8:25 AM (Encl. 22).

Criminal Histories

§ 87(2)(b), § 87(2)(c)
[REDACTED]

Civilian CCRB Histories

§ 87(2)(b) filed CCRB complaint number § 87(2)(b) on § 87(2)(b) behalf in January of 2000 (Encl. 29a-g). § 87(2)(b)
[REDACTED]

Officer CCRB Histories

Neither Captain Favale nor Sergeant Chell have any prior CCRB allegations that have been substantiated and led to charges (Encl. 3a-b).

Conclusions and Recommendations

§ 87(2)(b) has alleged that Captain Favale and another officer came to her home twice. She has complained specifically about Captain Favale, stating that he threatened to break her door down and threatened to arrest her during his first visit and that he threatened to notify ACS and entered her apartment without consent during his second visit. The officers have denied the allegations, and denied that Captain Favale was ever at the apartment twice. They have stated that Sergeant Chell came to the apartment twice but that he was with Officer Dixon the first time and was with Captain Favale and a larger team the second time. § 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Officer Identification

§ 87(2)(b) has stated that Captain Favale, the same officer who wrote his name down, was the officer who made the threats to break down her door, notify ACS and arrest her. However, Captain Favale has denied being at the apartment twice and the other officer accounts confirm this. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) was not able to identify any of the officers in the photo array, § 87(2)(g)

§ 87(2)(g) By the officers' own admissions, it seems clear that Sergeant Chell and Officer Dixon entered the apartment the first time while Captain Favale and Sergeant Chell entered the apartment the second time. § 87(2)(g)

Allegation A: An officer threatened to damage § 87(2)(b)'s property

Allegation B: An officer threatened to arrest § 87(2)(b)

§ 87(2)(b) has alleged that an officer named "Favale" threatened to break down her door and threatened to arrest her. This conduct allegedly occurred during the officers' first visit to her apartment at approximately 1:20 AM. However, Captain Favale has denied being at the scene for this visit, and has stated that he did not go to § 87(2)(b) home until approximately 7:00 AM. Captain Favale's account seems credible as to his whereabouts, and it is corroborated by the accounts of Sergeant Chell and Officer Dixon. § 87(2)(g)

Allegation C: Sergeant Chell entered and searched § 87(2)(b)

By his own account, Sergeant Chell did enter § 87(2)(b) apartment on 3/21/03. During the first entry at approximately 1:30 AM, Sergeant Chell was the supervising officer, and the responsibility for the entry and search were his. By all accounts, § 87(2)(b) allowed the officers inside during their first visit and did not object to their presence. § 87(2)(g)

The New York Court of Appeals found in *People v. Gonzalez* (1976) that consent is "incompatible with official coercion, actual or implicit, overt or subtle." *Kamins'* notes further that examples of coercion have included the threat to "take the defendant's baby into custody," the "threat to prosecute" and the threat to break a person's door. § 87(2)(g)

§ 87(2)(b) In *People v. Smith* (2001), the Superior Court of Richmond County found that the tactics used by the police created an *atmosphere* that was incompatible with free and voluntary consent. § 87(2)(g)

Allegation D: An officer threatened to notify ACS

As discussed in Allegation A and Allegation B, there is no clear subject officer for any of the threat allegations. Captain Favale was present during the second trip to § 87(2)(b) apartment, and would have been present for the alleged threat to "call BCW." § 87(2)(g)

Allegation E: Captain Favale entered and searched § 87(2)(b)

§ 87(2)(b) has alleged that she did not give the officers consent to enter her home when they came at approximately 7:00 AM. The officers claim that they were given consent to enter the apartment during both visits. This dispute raises several possibilities. § 87(2)(g)

According to Barry Kamins' New York Search and Seizure, "consent to allow the police to enter a home to talk to an individual does not constitute consent to allow other police officers to enter the premises at a later time for the purpose of making an identification of the individual." (Kamins' 303, Encl. 2) § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: